

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

10. CORAL STRICLER V. SCOTT STRICLER

25FL1201

On March 6, 2026, Respondent filed a Request for Order (RFO) seeking to set aside his default and requesting leave to file his Response to the Petition. He filed a Memorandum of Points and Authorities concurrently therewith. All required documents, with the exception of an FL-320 were served on March 10th.

Petitioner filed and served a Responsive Declaration to Request for Order on May 15, 2026.

The Reply Declaration of Attorney Homami was filed and served on June 3, 2026.

Respondent asks the court to set aside his default entered on January 28, 2026 and grant him leave to file his Response to the Petition for Dissolution of Marriage. He states that he was of the belief that the parties were negotiating the terms of the divorce and would potentially be filing a stipulated agreement for an uncontested Judgment. When the parties were unable to reach an agreement, Petitioner filed for his default. The proposed Response to the Petition is attached as Exhibit B to the RFO.

Petitioner opposes the motion and argues that the parties were not working towards a resolution and Respondent has no reason to believe he was not required to file a timely Response. She argues that granting the set aside would subject her to “unnecessary delay” and “additional burden” but she does not elaborate or provide any factual basis for these claims.

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” Cal. Civ. Pro. § 473(b). To obtain relief under Section 473(b), the moving party must do so within a reasonable time, but in no case exceeding 6 months after the date of the judgment and must provide a copy of the pleading proposed to be filed. *Id.*

Where, as here, alleged mistake and excusable neglect gives rise to the default, the court must determine whether a mistake or negligence is grounds to set aside a default judgment under Section 473(b). Generally, a pro per is held to the same standard as a practicing attorney. Goodson v. Bogerts, Inc., 252 Cal. App. 2d 32, 40 (1967) While the court is not to give deference to a party simply because that party was acting in pro per, the court is to resolve any doubts as to a showing of mistake, inadvertence, surprise, or excusable neglect in favor of the moving party. Elston v. City of Turlock, 38 Cal. 3d 227, 233 (1985)

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(overruled on other grounds). This is especially so when there has been no showing of substantial prejudice to the opposing party should the motion be granted. *Id.* at 235.

Here, it is arguable whether Respondent has established grounds to set aside the default where he claims he believed the parties were negotiating and would be filing a stipulation yet Petitioner denies that claim. Nevertheless, aside from Petitioner's conclusory statements that she would suffer additional delay and burden by setting aside the default, she has not provided any factual basis for these conclusory statements and she has made no showing that such delay and burden would be substantial. As such, erring on the side of state policy to resolve matters on the merits, the request to set aside the default is granted. Respondent shall file and serve his response within 14 days of the date of this order.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE REQUEST TO SET ASIDE THE DEFAULT IS GRANTED. RESPONDENT SHALL FILE AND SERVE HIS RESPONSE WITHIN 14 DAYS OF THE DATE OF THIS ORDER.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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11. ANTHONY TATUM V. PETRINA TATUM

23FL1230

On March 12, 2026, Respondent filed a Request for Order (RFO) seeking child custody orders. The RFO was served on May 11th however the Notice of Tentative Ruling was not served nor was the required blank FL-320.

Minor's Counsel filed and served a Responsive Declaration to Request for Order on May 14th.

On May 22nd, Petitioner filed and served a Responsive Declaration to Request for Order, an Income and Expense Declaration, and Attorney Amanda D. Yasbek's Declaration.

Respondent is requesting immediate implementation of a phased plan progressing toward equal shared custody. She further requests a holiday and vacation schedule, removal of the no-contact order, reunification therapy and/or co-counseling, and "father to be held accountable for non-compliance with prior orders."

Minor's Counsel asks the court to maintain the prior orders as there has been no showing of a substantial change in circumstances that would warrant the requested changes. She expressly requests the court's continued suspension of all visits between Respondent and the minor and all forms of communication between Respondent and the minor. She further asks the court to re-affirm its prior order that Respondent submit reliable documentation of her compliance with the court's prior orders prior to filing any future request to change custody.

Petitioner also asks the court to deny the RFO in its entirety. He further requests \$2,000 in sanctions pursuant to Family Code § 271 and \$3,000 in attorney fees pursuant to Family Code § 2032. Finally, he asks that the court admonish Respondent that continued harassment and misuse of the litigation process may result in additional sanctions or further remedial action by the court.

After reviewing the filings as outlined above the court finds that its orders of March 12, 2026 remain in the minor's best interests. All prior orders remain in full force and effect. This includes, but is not limited to, the following orders: "[t]he court does find it to be in the best interests of the minor to suspend the visits between her and Respondent. Respondent is ordered to enroll in, attend, and fully engage in parenting coaching sessions with a licensed, skilled, and experienced mental health professional, either Joel Walton, MFT or Josh Collver, LCSW. She is further ordered to complete and engage in anger management and individual therapy. Respondent is ordered to provide Petitioner, his attorney, and